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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:15-cv-01795-MJW-STV

Forbes v. Donnellon et al

Assigned to: Magistrate Judge Michael J. Watanabe

Referred to: Magistrate Judge Scott T. Varholak

Case in other court: Adams County District Court, 2015CV030929

Cause: 42:1983 Civil Rights Act

Date Filed: 08/20/2015

Date Terminated: 09/27/2017

Jury Demand: Both

Nature of Suit: 440 Civil Rights: Other

Jurisdiction: Federal Question

Plaintiff**Angus John Forbes**represented by **Douglas Pooley**

Douglas Pooley, Attorney at Law

8199 South Madison Way

Centennial, CO 80122

303-620-9400

Email: DOPOOLAW@AOL.COM

*ATTORNEY TO BE NOTICED***Plaintiff****Michelle Claudine Forbes***TERMINATED: 09/01/2016*represented by **Douglas Pooley**

(See above for address)

*ATTORNEY TO BE NOTICED***Plaintiff****Phoebe Forbes***TERMINATED: 03/09/2016*represented by **Douglas Pooley**

(See above for address)

ATTORNEY TO BE NOTICED

V.

Defendant**Michael Donnellon***Officer*represented by **Juliane Theresa DeMarco**

City and County of Denver

City Attorney's Office, Civil Litigation

201 West Colfax

Denver, CO 80202

303-913-4995

Email: juliane.demarco@coag.gov

*TERMINATED: 03/08/2017**LEAD ATTORNEY***Christopher Paul Soper**

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TERMINATED: 10/26/2017

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ATTORNEY TO BE NOTICED

Defendant

A. Sandoval
Officer

represented by **Juliane Theresa DeMarco**
(See above for address)
TERMINATED: 03/08/2017
LEAD ATTORNEY

Christopher Paul Soper
(See above for address)
TERMINATED: 10/26/2017

Heidi Michelle Miller
(See above for address)
ATTORNEY TO BE NOTICED

Plaintiff

Ian Forbes
TERMINATED: 03/09/2016

represented by **Douglas Pooley**
(See above for address)
ATTORNEY TO BE NOTICED

V.

Defendant

Adams County Colorado
TERMINATED: 09/01/2016

represented by **Christopher Paul Soper**
(See above for address)
TERMINATED: 10/26/2017

Heidi Michelle Miller
(See above for address)
ATTORNEY TO BE NOTICED

Juliane Theresa DeMarco
(See above for address)
TERMINATED: 03/08/2017

Defendant

Adams County Sheriff Department
and other as yet unnamed officers
TERMINATED: 09/01/2016

represented by **Christopher Paul Soper**
 (See above for address)
TERMINATED: 10/26/2017

Heidi Michelle Miller
 (See above for address)
ATTORNEY TO BE NOTICED

Juliane Theresa DeMarco
 (See above for address)
TERMINATED: 03/08/2017
ATTORNEY TO BE NOTICED

Defendant

Town of Bennett Colorado
TERMINATED: 11/09/2015

represented by **J. Andrew Nathan**
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Date Filed	#	Docket Text
08/20/2015	<u>1</u>	NOTICE OF REMOVAL by Aaron Sandoval, Michael Donnellon, Adams County Sheriff's Office from Adams County District Court, Case Number 2015CV030929. (Filing fee \$ 400, Receipt Number 1082-4563008), filed by Aaron Sandoval, Michael Donnellon, Adams County Sheriff's Office. (Attachments: # <u>1</u> State Court Complaint, # <u>2</u> Affidavit State Court Affidavit of Service, # <u>3</u> Civil Cover Sheet Civil Cover Sheet, # <u>4</u> Attachment to Civil Cover Sheet, # <u>5</u> Supplemental Civil Cover Sheet Supplemental Civil Cover Sheet)(DeMarco, Juliane) (Entered: 08/20/2015)
08/20/2015	<u>2</u>	COMPLAINT against Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval, Town of Bennett Colorado, filed by Phoebe Forbes, Ian Forbes, Michelle Claudine Forbes, Angus John Forbes.(jgonz,) (Entered: 08/20/2015)
08/20/2015	<u>3</u>	AFFIDAVIT of Service of Summons and Complaint upon Michael Donnellon and Officer A. Sandoval on 08/04/2015, filed by Plaintiffs Angus John Forbes, Ian Forbes, Michelle Claudine Forbes, Phoebe Forbes. (jgonz,) (Entered: 08/20/2015)

08/20/2015	4	Case assigned to Chief Judge Marcia S. Krieger and drawn to Magistrate Judge Michael J. Watanabe. Text Only Entry. (jgonz,) (Entered: 08/20/2015)
08/20/2015	5	Magistrate Judge Consent Form issued pursuant to Local Rule. (jgonz,) (Entered: 08/20/2015)
08/20/2015	6	FIRST AND FINAL NOTICE TO ATTORNEY(S) IN REMOVED, TRANSFERRED OR OTHER CASES: Pursuant to D.C.COLO.LCivR 11.1(a), an attorney must be a member of the U.S. District Court's bar to make an appearance and receive notice in any case before the court. The attorney records of the court reflect that the following counsel is a member of the U.S. District Courts Bar, but has not entered an appearance in this case: Douglas Pooley. In order to make an appearance in this case and receive any further notice regarding this case, counsel must file an entry of appearance in this case. Absent any Notice of Entry of Appearance filed, no further direct notices to counsel will be sent. Text only entry. (jgonz,) (Entered: 08/20/2015)
08/21/2015	7	ORDER REFERRING CASE to Magistrate Judge Michael J. Watanabe: IT IS ORDERED that pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this matter is referred to the assigned United States Magistrate Judge to: (1)Convene a scheduling conference under Fed. R. Civ. P. 16(b), enter a Scheduling Order meeting the requirements of D.C.COLO.LCivR 16.2, enter such orders as appropriate to enforce the Scheduling Order, and resolve discovery matters;(2)ADR: Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the magistrate judge or on the request of the parties by motion, the Court may direct the parties to engage in an early neutral evaluation, a settlement conference, or another alternative dispute resolution proceeding; (3)Hear and determine referred matters in accordance with 28 U.S.C. § 636(b)(1)(A) and (B). by Chief Judge Marcia S. Krieger on 8/21/15. Text Only Entry (msksec,) (Entered: 08/21/2015)
08/21/2015	8	ORDER Setting Scheduling/Planning Conference for 10/6/2015 10:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, by Magistrate Judge Michael J. Watanabe on 8/21/2015. (slibi,) (Entered: 08/21/2015)
08/21/2015	9	CERTIFICATE of Service by Mail by Clerk of Court re 8 Order to DOUGLAS POOLEY, 8199 S. MADISON WAY, CENTENNIAL CO 80122. Text Only Entry (slibi,) (Entered: 08/21/2015)
08/21/2015	10	NOTICE of Entry of Appearance by J. Andrew Nathan on behalf of Town of Bennett ColoradoAttorney J. Andrew Nathan added to party Town of Bennett Colorado(pty:dft) (Nathan, J.) (Entered: 08/21/2015)
08/21/2015	11	NOTICE of Entry of Appearance by Nicholas Christaan Poppe on behalf of Town of Bennett ColoradoAttorney Nicholas Christaan Poppe added to party Town of Bennett Colorado(pty:dft) (Poppe, Nicholas) (Entered: 08/21/2015)
08/24/2015	12	ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS USED IN EVIDENTIARY HEARINGS AND TRIALS: Any exhibits and depositions used during evidentiary hearings or trials, counsel for the parties shall retrieve the originals of such exhibits and depositions from the Court following the evidentiary hearing or trial, and shall retain same for 60 days beyond the later of the time to appeal or conclusion of any appellate proceedings. The Court will retain its copy of the exhibits for the same time period after which the documents will be destroyed. by Chief Judge Marcia S. Krieger on 8/24/15. Text Only Entry (pglov) (Entered: 08/24/2015)
08/24/2015	13	MOTION for Extension of Time to File Answer or Otherwise Respond re 2 Complaint by Defendant Town of Bennett Colorado. (Attachments: # 1 Proposed Order (PDF Only))

		(Poppe, Nicholas) (Entered: 08/24/2015)
08/25/2015	14	MEMORANDUM regarding 13 MOTION for Extension of Time to File Answer or Otherwise Respond re 2 Complaint filed by Town of Bennett Colorado. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 8/25/15. Text Only Entry (msksec,) (Entered: 08/25/2015)
08/25/2015	15	MINUTE ORDER granting 13 Motion for Extension of Time to Submit a Responsive Pleading, by Magistrate Judge Michael J. Watanabe on 8/25/2015. Town of Bennett Colorado answer due on or before 9/17/2015. (slibi,) (Entered: 08/25/2015)
08/25/2015	16	Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re 2 Complaint by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (DeMarco, Juliane) (Entered: 08/25/2015)
08/25/2015	17	MEMORANDUM regarding 16 Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re 2 Complaint filed by A. Sandoval, Adams County Colorado, Michael Donnellon, Adams County Sheriff Department. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 8/25/15. Text Only Entry (msksec,) (Entered: 08/25/2015)
08/25/2015	18	MINUTE ORDER granting 16 Unopposed Motion for Extension of Time to Submit a Responsive Pleading, by Magistrate Judge Michael J. Watanabe on 8/25/2015. Adams County Sheriff Department answer due 9/17/2015; Michael Donnellon answer due 9/17/2015; A. Sandoval answer due 9/17/2015. (slibi,) (Entered: 08/25/2015)
08/27/2015	19	NOTICE of filing of Current State Court Docket and State Court Order Re Notice of Removal by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval (Attachments: # 1 State Court Order re Notice of Removal)(DeMarco, Juliane) (Entered: 08/27/2015)
08/27/2015	20	CERTIFICATE of Mailing/Service re 5 Magistrate Judge Consent Form by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Attachments: # 1 Doc 5 Magistrate Consent Form)(DeMarco, Juliane) (Entered: 08/27/2015)
09/15/2015	21	Joint MOTION for Order to Show Cause <i>for Lack of Prosecution</i> by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E) (DeMarco, Juliane) (Entered: 09/15/2015)
09/15/2015	22	MEMORANDUM regarding 21 Joint MOTION for Order to Show Cause <i>for Lack of Prosecution</i> filed by A. Sandoval, Adams County Colorado, Michael Donnellon, Adams County Sheriff Department. Motions referred to Magistrate Judge Michael J. Watanabe by Chief Judge Marcia S. Krieger on 9/15/15. Text Only Entry (msksec,) (Entered: 09/15/2015)
09/15/2015	23	MINUTE ORDER Setting Hearing on Motion 21 Defendants' Joint Motion for Order to Show Cause for Lack of Prosecution. Motion Hearing set for 10/6/2015 10:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. By Magistrate Judge Michael J. Watanabe on 9/15/2015. (emill) (Entered: 09/15/2015)
09/24/2015	24	Joint STATUS REPORT by Defendant Town of Bennett Colorado. (Poppe, Nicholas) (Entered: 09/24/2015)
09/25/2015	25	MINUTE ORDER Deadlines set with which counsel are to comply, as set forth in the order. By Magistrate Judge Michael J. Watanabe on 9/25/2015. (emill) (Entered: 09/25/2015)

09/25/2015	26	CERTIFICATE of Mailing/Service. Copy of Minute Order 25 mailed to attorney Douglas Pooley, 8199 S. Madison Way, Centennial, CO 80122, as directed in the Minute Order 25 . (emill) (Entered: 09/25/2015)
09/25/2015	27	NOTICE re 25 Minute Order <i>Notice of Service</i> by Defendant Town of Bennett Colorado (Poppe, Nicholas) (Entered: 09/25/2015)
09/29/2015	28	NOTICE of Entry of Appearance by Douglas Pooley on behalf of All Plaintiffs Attorney Douglas Pooley added to party Angus John Forbes(pty:pla), Attorney Douglas Pooley added to party Ian Forbes(pty:pla), Attorney Douglas Pooley added to party Michelle Claudine Forbes(pty:pla), Attorney Douglas Pooley added to party Phoebe Forbes(pty:pla) (Pooley, Douglas) (Entered: 09/29/2015)
09/30/2015	29	NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 28 Notice of Entry of Appearance, :Douglas Pooley has failed to comply with D.C.COLO.LCivR5.1(a) and 4.3(d) of the Electronic Case Filing Procedures (Civil Cases), which mandate the correct form for an attorneys signature block. Failure in the future to follow these procedures may lead to mandatory CM/ECF training, or action by the court. (Text Only Entry) (dkals,) (Entered: 09/30/2015)
10/02/2015	30	CONSENT to Jurisdiction of Magistrate Judge by Defendant Town of Bennett Colorado Consent achieved by parties.. (Poppe, Nicholas) (Entered: 10/02/2015)
10/02/2015	31	Proposed Scheduling Order by Plaintiffs Angus John Forbes, Ian Forbes, Michelle Claudine Forbes, Phoebe Forbes. (Pooley, Douglas) (Entered: 10/02/2015)
10/02/2015	32	RESPONSE to 21 Joint MOTION for Order to Show Cause <i>for Lack of Prosecution</i> filed by Plaintiffs Angus John Forbes, Ian Forbes, Michelle Claudine Forbes, Phoebe Forbes. (Pooley, Douglas) (Entered: 10/02/2015)
10/02/2015	33	Witness List <i>FRCP 26(a) disclosures</i> by Plaintiffs Angus John Forbes, Ian Forbes, Michelle Claudine Forbes, Phoebe Forbes. (Pooley, Douglas) (Entered: 10/02/2015)
10/05/2015	34	ORDER OF REFERENCE Upon Consent to Jurisdiction of Magistrate Judge: Upon consent of the parties evidenced by Docket Entry #30, this case is referred to Magistrate Judge Michael J. Watanabe for all purposes pursuant to the Courts Pilot Program and 28 U.S.C. § 636(c). by Chief Judge Marcia S. Krieger on 10/5/15. Text Only Entry (msksec,) (Entered: 10/05/2015)
10/06/2015	35	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Michael J. Watanabe: Motion Hearing / Scheduling Conference held on 10/6/2015. Denying 21 Joint Motion for Order to Show Cause for Lack of Prosecution. Discovery due by 4/8/2016. Dispositive Motions due by 5/9/2016. Proposed Pretrial Order due by 7/19/2016. Final Pretrial Conference set for 7/26/2016 09:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Court Reporter: FTR - E. E. Miller. FTR: Courtroom A502. (emill) (Entered: 10/06/2015)
10/06/2015	36	SCHEDULING ORDER: Entered by Magistrate Judge Michael J. Watanabe on 10/6/2015. (emill) (Entered: 10/06/2015)
10/13/2015	37	MOTION to Dismiss for Failure to State a Claim by Defendant Town of Bennett Colorado. (Poppe, Nicholas) (Entered: 10/13/2015)
10/20/2015	38	Stipulated MOTION for Protective Order <i>to Preserve Confidentiality of Certain Documents</i> by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Attachments: # 1 Exhibit I - Proposed Protective Order)(DeMarco, Julianne) (Entered: 10/20/2015)

10/20/2015	39	ANSWER to 2 Complaint by Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval.(DeMarco, Julianne) (Entered: 10/20/2015)
10/20/2015	40	MINUTE ORDER granting 38 Stipulated Motion for Protective Order. Protective Order (38-1) is approved as amended in paragraphs 11 and 12 and made an Order of Court. By Magistrate Judge Michael J. Watanabe on 10/20/2015.(emill) (Entered: 10/20/2015)
10/20/2015	41	PROTECTIVE ORDER Entered by Magistrate Judge Michael J. Watanabe on 10/20/2015. (emill) (Entered: 10/20/2015)
10/28/2015	42	MOTION for Extension of Time to File Answer or Otherwise Respond re 37 MOTION to Dismiss for Failure to State a Claim by Plaintiffs Angus John Forbes, Ian Forbes, Michelle Claudine Forbes, Phoebe Forbes. (Pooley, Douglas) Modified on 10/29/2015 to change event type (slibi,). (Entered: 10/28/2015)
10/29/2015	43	MINUTE ORDER granting 42 Motion for Extension of Time to Respond, by Magistrate Judge Michael J. Watanabe on 10/29/2015.(slibi,) (Entered: 10/29/2015)
11/06/2015	44	RESPONSE to 37 MOTION to Dismiss for Failure to State a Claim filed by Plaintiffs Angus John Forbes, Ian Forbes, Michelle Claudine Forbes, Phoebe Forbes. (Pooley, Douglas) (Entered: 11/06/2015)
11/09/2015	45	ORDER granting 37 Motion to Dismiss Pursuant to F.R.C.P. 12(b)(6), by Magistrate Judge Michael J. Watanabe on 11/09/2015.(slibi,) (Entered: 11/09/2015)
11/09/2015	46	Final JUDGMENT by Clerk in favor of Town of Bennett Colorado against Angus John Forbes, Ian Forbes, Michelle Claudine Forbes, Phoebe Forbes re: 45 Order on Motion to Dismiss, on 11/09/2015. (slibi,) (Entered: 11/09/2015)
01/12/2016	47	NOTICE of <i>FIRM EMAIL CHANGE</i> by Defendant Town of Bennett Colorado (Poppe, Nicholas) (Entered: 01/12/2016)
03/08/2016	48	MOTION to Dismiss Party <i>dismiss Plaintiffs Ian and Phoebe Forbes as Plaintiffs</i> by Plaintiffs Angus John Forbes, Ian Forbes, Michelle Claudine Forbes, Phoebe Forbes. (Pooley, Douglas) (Entered: 03/08/2016)
03/09/2016	49	MINUTE ORDER granting 48 Motion to Dismiss Certain Named Plaintiffs and Claims, by Magistrate Judge Michael J. Watanabe on 3/09/2016. Plaintiffs Ian Forbes and Phoebe Forbes are DISMISSED without prejudice under Fed. R. Civ. P. 41(a)(2). (slibi,) (Entered: 03/09/2016)
03/16/2016	50	MOTION for Protective Order <i>regarding Plaintiffs' Discovery Requests to Defendants</i> by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E)(DeMarco, Julianne) (Entered: 03/16/2016)
03/26/2016	51	RESPONSE to 50 MOTION for Protective Order <i>regarding Plaintiffs' Discovery Requests to Defendants</i> filed by Plaintiffs Angus John Forbes, Michelle Claudine Forbes. (Pooley, Douglas) (Entered: 03/26/2016)
03/30/2016	52	REPLY to Response to 50 MOTION for Protective Order <i>regarding Plaintiffs' Discovery Requests to Defendants</i> filed by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (DeMarco, Julianne) (Entered: 03/30/2016)
03/30/2016	53	MINUTE ORDER: Denying 50 Defendants' Motion for Protective Order Regarding Plaintiffs' Discovery Requests to Defendants, by Magistrate Judge Michael J. Watanabe on 3/30/2016.(emill) (Entered: 03/30/2016)

04/07/2016	54	Joint MOTION for Extension of Time to <i>extend remaining discovery deadlines</i> by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (DeMarco, Juliane) (Entered: 04/07/2016)
04/08/2016	55	MINUTE ORDER granting 54 Joint Motion for Extension of Remaining Deadlines. Discovery due by 6/10/2016. Dispositive Motions due by 7/8/2016. Proposed Pretrial Order due by 8/23/2016. Final Pretrial Conference 7/26/2016 09:00 AM is VACATED Final Pretrial Conference RE-SET for 8/30/2016 09:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. By Magistrate Judge Michael J. Watanabe on 4/8/2016. (emill) (Entered: 04/08/2016)
07/08/2016	56	MOTION for Partial Summary Judgment by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Attachments: # 1 Exhibit Exhibit A - A. Forbes Interrogatory Responses, # 2 Exhibit B - M. Forbes Interrogatory Responses, # 3 Exhibit C - M. Forbes Arrest Report, # 4 Exhibit D - M. Forbes Deposition (partial))(DeMarco, Juliane) (Entered: 07/08/2016)
07/22/2016	57	MOTION for Extension of Time to , MOTION for Extension of Time to File Response/Reply as to 56 MOTION for Partial Summary Judgment by Plaintiffs Angus John Forbes, Ian Forbes, Michelle Claudine Forbes, Phoebe Forbes. (Pooley, Douglas) (Entered: 07/22/2016)
07/22/2016	58	MINUTE ORDER granting 57 Plaintiffs' Motion for Extension of Time to Respond. Plaintiffs shall file response to 56 Defendants' motion for partial summary judgment on or before 8/8/2016, by Magistrate Judge Michael J. Watanabe on 7/22/2016.(emill) (Entered: 07/22/2016)
08/09/2016	59	MOTION for Extension of Time to , MOTION for Extension of Time to File Answer or Otherwise Respond re 56 MOTION for Partial Summary Judgment by Plaintiffs Angus John Forbes, Michelle Claudine Forbes. (Pooley, Douglas) (Entered: 08/09/2016)
08/09/2016	60	MINUTE ORDER granting 59 Motion for Extension of Time to Respond, by Magistrate Judge Michael J. Watanabe on 8/09/2016.(slibi,) (Entered: 08/09/2016)
08/09/2016	61	BRIEF in Opposition to 56 MOTION for Partial Summary Judgment filed by Plaintiffs Angus John Forbes, Michelle Claudine Forbes. (Attachments: # 1 Appendix, # 2 Deposition Excerpts, # 3 Deposition Excerpts, # 4 Deposition Excerpts, # 5 Deposition Excerpts, # 6 Deposition Excerpts, # 7 Exhibit, # 8 Affidavit)(Pooley, Douglas) (Entered: 08/10/2016)
08/23/2016	62	Proposed Pretrial Order by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Attachments: # 1 Exhibit 2, Defendants' Witness List, # 2 Exhibit 4, Defendants' Exhibit List)(DeMarco, Juliane) (Entered: 08/23/2016)
08/23/2016	63	Proposed Pretrial Order by Plaintiffs Angus John Forbes, Michelle Claudine Forbes. (Attachments: # 1 Exhibit Witness list, # 2 Exhibit exhibit list)(Pooley, Douglas) (Entered: 08/23/2016)
08/26/2016	64	REPLY to Response to 56 MOTION for Partial Summary Judgment filed by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (DeMarco, Juliane) (Entered: 08/26/2016)
08/26/2016	65	Utility Setting/Resetting Deadlines/Hearings: Proposed Final Pretrial Order filed; deadline terminated. Text Only Entry (emill) (Entered: 08/26/2016)
08/30/2016	66	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Michael J. Watanabe: Final Pretrial Conference held on 8/30/2016. Proposed

		Pretrial Order due by 9/1/2016. Final Pretrial Conference set for 9/15/2016 11:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Court Reporter: FTR - E. E. Miller. FTR: Courtroom A502. (emill) (Entered: 08/30/2016)
08/31/2016	67	Proposed Pretrial Order by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Attachments: # 1 Exhibit 1 - Plaintiffs' Witness List, # 2 Exhibit 2 - Defendants' Witness List, # 3 Exhibit 3 - Plaintiffs' Exhibit List, # 4 Exhibit 4 - Defendants' Exhibit List)(DeMarco, Julianne) (Entered: 08/31/2016)
09/01/2016	68	ORDER granting 56 Motion for Partial Summary Judgment, by Magistrate Judge Michael J. Watanabe on 9/01/2016.(slibi,) (Entered: 09/01/2016)
09/06/2016	69	MINUTE ORDER re Motions in Limine and any other Trial Motions, by Magistrate Judge Michael J. Watanabe on 9/06/2016. Final Pretrial Conference currently set on 9/15/2016 at 11:00 AM is VACATED. (slibi,) (Entered: 09/06/2016)
09/14/2016	70	MOTION for Extension of Time to <i>comply with minute order</i> by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 09/14/2016)
09/14/2016	71	MINUTE ORDER granting 70 Plaintiff's Motion for Extension of Time to Comply with Court Minute Order of September 6 69 , as set forth in the order, by Magistrate Judge Michael J. Watanabe on 9/14/2016.(emill) (Entered: 09/14/2016)
10/03/2016	72	MOTION in Limine by Defendants Michael Donnellon, A. Sandoval. (Attachments: # 1 Exhibit A, Plaintiff's Exhibit List, # 2 Exhibit B, June 4, 2014 Incident Report, # 3 Exhibit Plaintiff's Ex. 3, # 4 Exhibit Plaintiff's Ex. 17, # 5 Exhibit Plaintiff's Ex. 20, # 6 Exhibit Plaintiff's Ex. 21, # 7 Exhibit Plaintiff's Ex. 22, # 8 Exhibit Plaintiff's Ex. 23, # 9 Exhibit Plaintiff's Ex. 24)(DeMarco, Julianne) (Entered: 10/03/2016)
10/03/2016	73	OBJECTIONS to <i>Plaintiff's Exhibits</i> by Defendants Michael Donnellon, A. Sandoval. (DeMarco, Julianne) (Entered: 10/03/2016)
10/18/2016	74	RESPONSE to 72 MOTION in Limine filed by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 10/18/2016)
11/04/2016	75	REPLY to Response to 72 MOTION in Limine filed by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (DeMarco, Julianne) (Entered: 11/04/2016)
11/17/2016	76	ORDER denying 72 Defendants' Opposed Motion in <i>Limine</i> , by Magistrate Judge Michael J. Watanabe on 11/17/2016.(emill) (Entered: 11/18/2016)
11/18/2016	77	MINUTE ORDER Final Pretrial Conference set for 1/9/2017 01:30 PM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Proposed Pretrial Order due by 1/2/2017. By Magistrate Judge Michael J. Watanabe on 11/18/2016. (emill) (Entered: 11/18/2016)
12/27/2016	78	Proposed Pretrial Order by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Attachments: # 1 Exhibit 1 - Plaintiffs' Witness List, # 2 Exhibit 2 - Defendants' Witness List, # 3 Exhibit 3 - Plaintiffs' Exhibit List, # 4 Exhibit 4 - Defendants' Exhibit List)(DeMarco, Julianne) (Entered: 12/27/2016)
12/27/2016	79	OBJECTIONS to <i>Plaintiff's Exhibits</i> by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (DeMarco, Julianne) (Entered: 12/27/2016)
01/09/2017	80	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Michael J. Watanabe: Final Pretrial Conference held on 1/9/2017. ORDERED: The parties have up to and including January 23, 2017 to file any further motions in limine or

		other pretrial motions. ORDERED: A five-day jury trial is set for Monday, September 25, 2017 thru Friday, September 29th, commencing at 8:00 a.m. ORDERED: A Trial Preparation Conference is set Thursday, September 7, 2017 at 9:00 a.m., for one hour. ORDERED: The Defendants' request that Plaintiffs give them a demand before the order of reference is entered is GRANTED. Plaintiffs have up to and including January 23, 2017 to give the Defendants a demand. The Final Pretrial Order is authorized and signed as amended, along with the parties' Witness and Exhibit Lists FTR: A502. (dhans,) (Entered: 01/10/2017)
01/09/2017	81	FINAL PRETRIAL ORDER, by Magistrate Judge Michael J. Watanabe on 1/9/2017. (dhans,) (Entered: 01/10/2017)
01/09/2017	82	MINUTE ORDER Clerk of Court shall assign a magistrate judge to this case for the purpose of conducting a Settlement Conference, by Magistrate Judge Michael J. Watanabe on 1/09/2017. (slibi,) (Entered: 01/10/2017)
01/09/2017	83	CASE REASSIGNED. This case is reassigned to Magistrate Judge Scott T Varholak for settlement purposes pursuant to 82 . All future pleadings should be designated as 15-cv-01795-MJW-STV. (Text Only Entry) (slibi,) (Entered: 01/10/2017)
01/10/2017	84	Civil Trial Procedures ORDER by Magistrate Judge Michael J. Watanabe on 1/10/2017. (slibi,) (Entered: 01/10/2017)
01/10/2017	85	MINUTE ORDER This matter was referred to the Court for the purposes of conducting a Settlement Conference. [#83] In order to schedule the Settlement Conference, the parties shall contact the Court within the next two weeks. The parties shall initiate a conference call amongst themselves before calling the Court at 303.335.2365. By Magistrate Judge Scott T Varholak on 1/10/2017. Text Only Entry (stvlc2,) (Entered: 01/10/2017)
01/11/2017	86	MINUTE ORDER Settlement Conference set for 2/9/2017 01:00 PM in Courtroom C205 before Magistrate Judge Scott T Varholak, by Magistrate Judge Scott T Varholak on 1/11/2017. (slibi,) (Entered: 01/11/2017)
01/12/2017	87	MINUTE ORDER Settlement Conference set for 2/9/2017 01:00 PM is VACATED and RESET for 2/8/2017 01:30 PM in Courtroom C205 before Magistrate Judge Scott T Varholak. Settlement documents are now due on 2/1/2017. By Magistrate Judge Scott T Varholak on 1/12/2017. Text Only Entry (stvlc2,) (Entered: 01/12/2017)
02/08/2017	88	MINUTE ENTRY for proceedings held before Magistrate Judge Scott T. Varholak: Settlement Conference held on 2/8/2017. (slibi,) (Entered: 02/09/2017)
03/07/2017	89	NOTICE of Entry of Appearance by Heidi M. Miller on behalf of Michael Donnellon, A. Sandoval Attorney Heidi M. Miller added to party Michael Donnellon(pty:dft), Attorney Heidi M. Miller added to party A. Sandoval(pty:dft) (Miller, Heidi) (Entered: 03/07/2017)
03/08/2017	90	MOTION to Withdraw as Attorney by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Attachments: # 1 Proposed Order (PDF Only))(DeMarco, Julianne) (Entered: 03/08/2017)
03/08/2017	91	MINUTE ORDER granting 90 Motion for Withdrawal and Substitution of Counsel, by Magistrate Judge Michael J. Watanabe on 3/08/2017. Attorney Julianne Theresa DeMarco terminated. (slibi,) (Entered: 03/08/2017)
05/19/2017	92	NOTICE of Entry of Appearance by Christopher Paul Soper on behalf of Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval Attorney Christopher Paul Soper added to party Adams County Colorado(pty:dft), Attorney Christopher Paul Soper added to party Adams County Sheriff Department(pty:dft), Attorney Christopher Paul Soper added to party Michael Donnellon(pty:dft), Attorney

		Christopher Paul Soper added to party A. Sandoval(pty:dft) (Soper, Christopher) (Entered: 05/19/2017)
08/25/2017	93	MOTION for Extension of Time to <i>comply with trial procedures order</i> by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 08/25/2017)
08/25/2017	94	MINUTE ORDER denying 93 Motion for Extension of Time to Comply with Court Trial Procedures Order, by Magistrate Judge Michael J. Watanabe on 8/25/2017. (slibi,) (Entered: 08/25/2017)
08/25/2017	95	MOTION for Extension of Time to <i>renewed motion</i> by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 08/25/2017)
08/28/2017	96	MINUTE ORDER denying 95 Plaintiffs Renewed Motion for Extension of Time to Comply with Court Trial Procedures Order, by Magistrate Judge Michael J. Watanabe on 8/28/2017. (slibi,) (Entered: 08/28/2017)
08/28/2017	97	Exhibit List by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 08/28/2017)
08/28/2017	98	Witness List by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 08/28/2017)
08/28/2017	99	Exhibit List <i>Joint</i> by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 08/28/2017)
08/28/2017	100	OBJECTIONS to <i>Plaintiff's Exhibits</i> by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 08/28/2017)
08/28/2017	101	Proposed Verdict Form by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 08/28/2017)
08/28/2017	102	Proposed Voir Dire by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 08/28/2017)
08/28/2017	103	Proposed Jury Instructions by Defendants Adams County Colorado, Adams County Sheriff Department, Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 08/28/2017)
08/28/2017	104	Proposed Jury Instructions by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 08/28/2017)
08/28/2017	105	Proposed Voir Dire by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 08/28/2017)
08/28/2017	106	Witness List by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 08/28/2017)
08/28/2017	107	Exhibit List by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 08/28/2017)
08/28/2017	108	Proposed Verdict Form by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 08/28/2017)
08/28/2017	109	Exhibit List <i>defendants with plaintiff objections</i> by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 08/28/2017)
09/07/2017	110	COURTROOM MINUTES for proceedings held before Magistrate Judge Michael J. Watanabe: Trial Preparation Conference held on 9/7/2017. Trial Preparation Conference set for 9/14/2017 at 09:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. FTR: Courtroom A-502. (slibi,) (Entered: 09/07/2017)

09/14/2017	<u>111</u>	MINUTE ORDER re Court held a continued Trial Preparation Conference on September 14, 2017 at 9:00 a.m. in Chambers. The parties and counsel shall appear at 8:00 a.m. on September 25, 2017 for the first day of trial, by Magistrate Judge Michael J. Watanabe on 9/14/2017. (slibi,) (Entered: 09/14/2017)
09/25/2017	<u>112</u>	COURTROOM MINUTES for proceedings held before Magistrate Judge Michael J. Watanabe: Jury Trial - Day One held on 9/25/2017. Court Reporter: Janet Coppock. (slibi,) (Main Document 112 replaced on 9/26/2017) (slibi,). (Entered: 09/26/2017)
09/25/2017	<u>116</u>	Stipulation and ORDER Regarding Custody of Exhibits and Depositions, by Magistrate Judge Michael J. Watanabe on 9/25/2017. (slibi,) (Entered: 09/27/2017)
09/26/2017	<u>113</u>	COURTROOM MINUTES for proceedings held before Magistrate Judge Michael J. Watanabe: Jury Trial - Day Two held on 9/26/2017. Court Reporter: Janet Coppock. (slibi,) Modified on 9/27/2017 to edit text (slibi,). (Entered: 09/27/2017)
09/27/2017	<u>114</u>	Jury Strike Sheet with juror names redacted. (slibi,) (Entered: 09/27/2017)
09/27/2017	<u>115</u>	Jury Strike Sheet - Unredacted - Level 3 - Viewable by Court Only. (slibi,) (Entered: 09/27/2017)
09/27/2017	117	MINUTE ORDER by Magistrate Judge Michael J. Watanabe on 9/27/2017. The Clerk of Court shall provide lunch to the jury for the duration of their deliberations commencing on Wednesday, September 27, 2017. Text Only Entry (slibi,) (Entered: 09/27/2017)
09/27/2017	<u>118</u>	COURTROOM MINUTES for proceedings held before Magistrate Judge Michael J. Watanabe: Jury Trial - Day Three completed on 9/27/2017. JURY VERDICT. ORDERED: Jury lunches will be provided. ORDERED: All post-trial motions shall be filed on or before October 12, 2017. Court Reporter: Janet Coppock. (slibi,) (Additional attachment(s) added on 9/27/2017: # <u>1</u> Clerk's Record of Exhibits) (slibi,). (Entered: 09/27/2017)
09/27/2017	<u>119</u>	Jury Instructions. (slibi,) (Entered: 09/27/2017)
09/27/2017	<u>120</u>	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (slibi,) (Entered: 09/27/2017)
09/27/2017	<u>121</u>	JURY VERDICT. (slibi,) (Entered: 09/27/2017)
09/27/2017	<u>122</u>	Jury Note - Unredacted - Level 3 - Viewable by Court Only. (slibi,) (Entered: 09/27/2017)
09/27/2017	<u>123</u>	Jury Notes. (slibi,) (Entered: 09/27/2017)
09/27/2017	<u>124</u>	FINAL JUDGMENT in favor of A. Sandoval, Michael Donnellon against Angus John Forbes, by Clerk on 9/27/2017. (slibi,) (Entered: 09/27/2017)
10/11/2017	<u>125</u>	MOTION for Attorney Fees by Defendants Michael Donnellon, A. Sandoval. (Attachments: # <u>1</u> Affidavit Heidi Miller, # <u>2</u> Affidavit Kelly Vis, # <u>3</u> Exhibit Description of Work)(Miller, Heidi) (Entered: 10/11/2017)
10/11/2017	<u>126</u>	Proposed Bill of Costs by Defendants Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 10/11/2017)
10/18/2017	<u>127</u>	MOTION for Extension of Time to File Answer or Otherwise Respond <i>to motion for attorney fees and bill of costs</i> by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 10/18/2017)
10/18/2017	<u>128</u>	MOTION for Extension of Time to File Response/Reply as to <u>125</u> MOTION for Attorney Fees , <u>127</u> MOTION for Extension of Time to File Answer or Otherwise Respond <i>to</i>

		<i>motion for attorney fees and bill of costs REVISED WITH PROPER CAPTION</i> by Plaintiff Angus John Forbes. (Pooley, Douglas) (Entered: 10/18/2017)
10/19/2017	129	MINUTE ORDER by Magistrate Judge Michael J. Watanabe on 10/19/2017 DENYING as moot 127 Plaintiff's Motion for Enlargement of Time and GRANTING 128 Plaintiff's Motion for Enlargement of Time to Respond to Defendants Motion for Attorney Fees and Costs. (tshe,) (Entered: 10/19/2017)
10/26/2017	130	MOTION to Withdraw as Attorney <i>Christopher Soper</i> by Defendants Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 10/26/2017)
10/26/2017	131	MINUTE ORDER granting 130 Motion to Withdraw as Attorney by Magistrate Judge Michael J. Watanabe on 10/26/2017. Attorney Christopher Paul Soper terminated from this case. (tshe,) (Entered: 10/26/2017)
11/03/2017	132	RESPONSE to Defendants MOTION for Attorney Fees by Plaintiff Angus John Forbes. (Pooley, Douglas) Modified on 11/14/2017 to change text pursuant to Chambers (slibi,). (Entered: 11/03/2017)
11/15/2017	133	REPLY to Response to 125 MOTION for Attorney Fees , 132 MOTION for Attorney Fees <i>response</i> filed by Defendants Michael Donnellon, A. Sandoval. (Miller, Heidi) (Entered: 11/15/2017)
12/05/2017	134	MINUTE ORDER granting 125 Motion for Attorney Fees, by Magistrate Judge Michael J. Watanabe on 12/05/2017. Defendants are awarded \$15,872.00 in reasonable attorneys fees. Plaintiff Angus John Forbes shall pay to the Defendants Michael Donnellon and Aaron Sandoval the sum of \$15,872.00 on or before January 5, 2018. (slibi,) (Entered: 12/05/2017)
12/06/2017	135	Costs Taxed by Clerk in the amount of \$3,217.40 against Plaintiff Angus Forbes and in favor of Defendants Michael Donnellon, et al. (ebutl) (Entered: 12/06/2017)

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